

UNITED KINGDOM 2021 HUMAN RIGHTS REPORT

EXECUTIVE SUMMARY

The United Kingdom of Great Britain and Northern Ireland (the UK) is a constitutional monarchy with a multiparty, parliamentary form of government. Citizens elect members of Parliament to the House of Commons, the lower chamber of the bicameral Parliament. They last did so in free and fair elections in 2019. Members of the upper chamber, the House of Lords, occupy appointed or hereditary seats. Scotland, Northern Ireland, Wales, and Bermuda have elected legislative bodies and devolved administrations with varying degrees of legislative and executive powers. The UK has 14 overseas territories, including Bermuda. Each of the overseas territories has its own constitution, while the UK government is responsible for external affairs and defense.

Except in Scotland and Northern Ireland, the national police maintained internal security and reported to the Home Office. The army, under the authority of the Ministry of Defence, is responsible for external security and supports police in extreme cases. The National Crime Agency investigates serious crime in England, Scotland, Wales, and Northern Ireland and has a mandate to deal with organized, economic, and cybercrimes as well as border policing and child protection. The National Crime Agency's director general has independent operational direction and control over the agency's activities and is accountable to the home secretary.

Scotland's judicial, legal, and law enforcement system is devolved. Police Scotland reports to the Scottish justice minister and the state prosecutor, coordinates cross-border crime and threat information to the national UK police, and responds to UK police needs in Scotland upon request.

Northern Ireland also maintains a separate police force, the Police Service of Northern Ireland, which reports to the Northern Ireland Policing Board, a public body composed of members of the Northern Ireland Assembly and independent members of the community.

The Bermuda Police Service is responsible for internal security on the island and reports to the governor appointed by the UK, but it is funded by the elected government of the island.

Civilian authorities throughout the UK and its territories maintained effective control over the security forces. There were credible reports that members of the security forces committed some abuses.

Significant human rights issues included credible reports of crimes, violence, and threats of violence motivated by anti-Semitism.

The government had mechanisms in place to identify and punish officials who may commit human rights abuses.

Section 1. Respect for the Integrity of the Person

a. Arbitrary Deprivation of Life and Other Unlawful or Politically Motivated Killings

There were reports the government or its agents committed arbitrary or unlawful killings. The Independent Office for Police Conduct investigates whether security force killings were justifiable, and if appropriate, passes cases to the Crown Prosecution Service to pursue prosecution. On March 3, Metropolitan Police officer Wayne Couzens abducted, raped, and killed Sarah Everard in London. On September 30, Couzens was convicted of murder and sentenced to life in prison.

b. Disappearance

There were no reports of disappearances by or on behalf of government authorities.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibits such practices, but there were a few reports that government officials employed them.

The Scottish Human Rights Commission (SHRC) expressed concerns over the impact of the COVID-19 pandemic on the prison population. In February SHRC

commissioners raised concerns to the Scottish Parliament's Equalities and Human Rights Committee regarding the measures the Scottish Prison Service was taking to control the spread of COVID-19 among Scotland's prison population. This included a "considerable number of instances" of prisoners remaining locked in their cells for 24 hours a day and, in certain instances, a number of weeks without access to showers or outdoor exercise due to self-isolation requirements.

Prison and Detention Center Conditions

Prison and detention center conditions met international standards but had shortcomings. The government documented and was investigating these problems.

Physical Conditions: In his 2020-21 annual report, the chief inspector of prisons stated he examined Border Force short-term holding facilities (STHFs) for the first time and found "inadequate leadership and management of STHF detention." Comprehensive data on the number of detainees or the length of time they had spent in detention were not available. The report also assessed the detention of migrants arriving in Dover on small boats and found "a general failure to plan for what we considered to have been a predictable increase in arrivals" and "unacceptably poor" safeguarding for children. Most migrants were first taken to the facilities at Tug Haven in Dover, which the Inspectorate for Prisons stated resembled a building site and were not fit for their designated purpose. Migrants almost always arrived wet and cold and then usually spent hours in the open air or in cramped container units before being transferred. Basic supplies of clean and dry clothing regularly ran out, and the bathroom facilities were inadequate. The other sites on the south coast, the Kent Intake Unit in Dover and Frontier House in Folkestone, provided basic accommodation suitable for a short time. Many individuals held there, however, had been in crowded conditions for lengthy periods, without access to sleeping facilities, showers, or the open air. In the three months to August 31, 2020, 29 percent of unaccompanied minors were held at the Kent Intake Unit for more than 24 hours, and a 15-year-old unaccompanied child was held for 66 hours.

Although the chief inspector of prisons commended the Prison Service for swift action limiting the impact of COVID-19 in prisons, a report noted the Prison Service's measures to protect prisoners from COVID-19 came at significant cost to

the “well-being and progression” of prisoners. During the lockdown, with few exceptions, the Prison Inspectorate found prisoners living together in cramped conditions in cells designed for one occupant. Many shared cells were too small and had unscreened washing and toilet facilities. The Prison Inspectorate found the poorest accommodation in some of the older prisons, with Leicester, Pentonville, and parts of Erlestoke among the worst. Cold, dark, and shabby cells were often plagued by dampness, cockroaches, leaking pipes and toilets, and broken or missing furniture and windows. The chief inspector of prisons’ annual report for 2020-21 stated that most prisoners were locked in their cells for 22.5 hours a day. It specifically mentioned as “unacceptable and degrading” the practice of denying prisoners access to lavatory facilities and forcing them to relieve themselves in buckets or bags in their cells. Because of the COVID-19 pandemic, approximately 10 percent of male prisoners were allowed to work. In women’s local prisons, 15-30 percent had some employment and half the women in training prisons had work for about 15 hours a week. In England and Wales, 52 percent of prisoners reported mental health problems during the pandemic.

The Urgent Notification Protocol allows the chief inspector of prisons to alert the lord chancellor and secretary of state for justice directly if he or she has an urgent and significant concern about the performance of a prison. In September the chief inspector of prisons issued an Urgent Notification requiring immediate attention by the secretary of state for justice to address violence, safety, and poor conditions at a men’s prison, HMP (Her Majesty’s Prison) Chelmsford. Two Urgent Notifications were also issued for Rainsbrook Security Training Center (STC) following visits by inspectors in December 2020 and June 2021 after inspectors found serious concerns, including keeping children in their rooms for up to 23.5 hours a day. An October report by inspectors found “poor practice” placed children and staff at Rainsbrook STC at risk of harm and failed to give vulnerable children adequate care and support.

According to the Ministry of Justice, from March 2020 to March 2021, there were 408 deaths in prison custody (a rate of 5.2 per 1,000 prisoners), an increase from 287 deaths in the previous 12 months (3.5 per 1,000 prisoners). There were 283 deaths due to natural causes (3.6 per 1,000 prisoners), a 65 percent increase over the 172 deaths (2.1 per 1,000 prisoners) in the previous 12 months. This increase

of 111 deaths due to natural causes reflected deaths from COVID-19. There were 79 apparently self-inflicted deaths in the 12 months to March, a decrease of 4 percent from 82 self-inflicted deaths in the previous 12 months. Statistics recorded 45 deaths as “other,” of which 33 were “awaiting further information” prior to being classified.

Offenders younger than 20 were held in young-offender institutions. STCs are institutions for young persons up to the age of 17, of which there were three in England and Wales. An Inspectorate of Prisons report, *Outcomes for Young People in Custody*, found those between ages 18 and 25 were placed in establishments without consideration of their needs and received insufficient support, including structure, meaningful activities, and opportunities to address their behavior. The chief inspectors of the Office for Standards in Education, Children’s Services, and Skills (Ofsted) and the Inspectorate for Prisons initiated a review of education in prison to assess the impact of COVID-19 on prison education already judged as “poor.”

Separate from prisons, there were seven immigration removal centers in England and Wales used solely for the detention of failed asylum seekers and migrants. In May a report by the Chief Inspectorate of Prisons found that four of the eight immigration removal centers had “dramatically reduced their populations” since March because migrants can only be held if there is a reasonable expectation of removal. Given the widespread use of travel bans to stop the spread of COVID-19, this expectation did not exist, allowing detainees to be released until removal proceedings could be resumed. There was no update to this trend at year’s end.

The Council of Europe Committee for the Prevention of Torture (CPT) delegation that visited Scotland in 2019 considered the separation and reintegration unit of the Cornton Vale Prison in Scotland was “a totally inappropriate environment for holding vulnerable women prisoners, especially mentally ill and young women, for long periods of time.” In Scotland the CPT found that two women in the segregation unit at Cornton Vale Prison (known as “the Dumyat”) were locked alone in their cells for 23.5 to 24 hours each day, allowed at most one hour of outside exercise alone and 15 minutes on the telephone every day. They were offered no purposeful activities to structure their days and no mixing with other prisoners. Follow-up research by the Scottish subgroup of the UK’s National

Preventive Mechanism during the year indicated the Scottish government still did not address fully many of the CPT's criticisms.

There were 13 publicly managed and two privately managed prisons in Scotland. In 2020 there were 34 deaths of individuals in custody in Scotland, of which five were COVID-19-related and five from suicide.

According to the annual Northern Ireland prisoner ombudsman report for 2019/20, the latest data available, investigations into seven deaths were carried out. Two of those deaths were due to natural causes.

Administration: Authorities conducted investigations of credible allegations of mistreatment.

Independent Monitoring: In England and Wales, the government permitted monitoring by independent nongovernmental observers. Every prison, immigration removal center, and some short-term holding facilities at airports have an independent monitoring board. Each board's members are independent, and their role is to monitor day-to-day activity in the facility and to ensure proper standards of care and decency. Members have unrestricted access to the facility at any time and can talk to any prisoner or detainee they wish, out of sight and hearing of staff, if necessary.

Scotland operates the Independent Prison Monitoring system. The 2019-20 annual report by the chief inspector of prisons for Scotland, the latest information available, found that "prisons remain stable, orderly and reasonably calm," although a high proportion of prisoners "do not routinely access the available opportunities that could inhibit future criminogenic behavior."

On June 8 to 21, a CPT delegation made a periodic visit to England. At year's end the report of the visit had not been published.

d. Arbitrary Arrest or Detention

The law prohibits arbitrary arrest and detention and provides for the right of any person to challenge the lawfulness of his or her arrest or detention in court. The government routinely observed these requirements.

Police officers in England and Wales have powers to stop and search anyone if they have “reasonable grounds” to suspect the individual may be in possession of drugs, weapons, stolen property, or any item that could be used to commit a crime.

In Scotland guidelines allow police to stop and search persons only when police have “reasonable grounds,” a refinement after criticism that stop-and-search was being used to target specific racial groups. Data revealed 43,550 stop and searches conducted between April 2020 and March 2021.

In Northern Ireland the law permits police officers to stop and search members of the public. In most circumstances a police officer needs grounds to search an individual. Some stop-and-search powers allow individuals to be searched without grounds. From July 2020 to June 2021, 27,041 stop-and-searches were conducted in Northern Ireland.

Arrest Procedures and Treatment of Detainees

Police nationally must have a warrant issued by a magistrate or a judge to arrest a person unless there is reasonable suspicion a person has just committed or is about to commit a crime. In England, Wales, and Northern Ireland, a senior police official must authorize detention without charges for more than 24 hours, and a magistrate must authorize detention for more than 36 hours up to a maximum 96 hours. Police may detain terrorism suspects without charge for up to 14 days. Police must inform detainees promptly of charges against them. The court may extend pretrial detention in exceptional cases. Authorities respected these rights.

Nationally there is a functioning bail system, but defendants may be denied bail if they are judged to be flight risks, likely to commit another offense, are suspected terrorists, or for other limited reasons.

If questioned at a police station, all suspects in the UK have the right to legal representation, including counsel provided by the government if they are indigent. Police may not question suspects who request legal advice until a lawyer is present. In Gibraltar the Duty Legal Representative Scheme provides free legal representation to anyone in Gibraltar police custody earning less than 14,000 pounds (\$18,480) per year, the minimum wage. All law firms in Gibraltar with five or more lawyers are required to register as part of the scheme.

In Scotland police may detain a suspect for no more than 24 hours. After an initial detention period of 12 hours, a police custody officer may authorize further detention for an additional 12 hours without authorization from the court if the officer believes it necessary. Only a judge can issue a warrant for arrest if he or she believes there is sufficient evidence against a suspect. A suspect must be informed immediately of allegations against him or her and be advised promptly of the charges if there is sufficient evidence to proceed. Authorities respected this right. Depending on the nature of the crime, a suspect should be released from custody if he or she is deemed not to present a risk. There is a functioning bail system.

In Bermuda a court must issue a warrant for an arrest to proceed. The law permits arrests without warrant only in certain conditions. When a police officer has reasonable grounds for suspecting that any offense that is not an arrestable offense has been or is being committed or attempted, he or she may arrest the relevant person if it appears that service of a summons is impracticable. No arrests or detentions may be made arbitrarily or secretly, and the detainee must be told the reason for the arrest immediately. Individuals may be detained initially for six hours, and for two further periods of up to nine hours each, subject to review and justification. Authorities respected this right.

There is a functioning bail system in Bermuda. House arrest and wearing an electronic monitoring device may be a condition of bail. A detainee has an immediate right of access to a lawyer, either through a personal meeting or by telephone. Free legal advice is provided for detainees. Police must inform the arrestee of his or her rights to communication with a friend, family member, or other person identified by the detainee. The police superintendent may authorize incommunicado detention for serious crimes such as terrorism.

Pretrial Detention: In September 2020 temporary legislation came into effect extending the maximum length of pretrial detention, or custody time limits (“CTLs”), from six to eight months. It was introduced to address delays in jury trials due to COVID-19. The nongovernmental organization (NGO) Fair Trials discovered through a Freedom of Information request in March that as of December 2020, more than 2,551 persons had been held in custody for longer than legally permitted, such as for eight months or longer. The extension ended on June

28 and reverted to six months.

e. Denial of Fair Public Trial

The law provides for an independent judiciary, and the government respected judicial independence and impartiality.

Trial Procedures

The law provides for the right to a fair and public trial, and an independent judiciary routinely enforced this right. Defendants enjoy a presumption of innocence, and the right to be informed promptly and in detail of the charges. Criminal proceedings must be held without undue delay and be open to the public except for cases in juvenile court or those involving public decency or security. Under the Official Secrets Act, the judge may order the court closed, but sentencing must be public. Defendants have the right to be present at their trial.

Defendants have the right to communicate with an attorney of their choice or to have one provided at public expense if unable to pay. Defendants and their lawyers have adequate time and facilities to prepare a defense and free assistance of an interpreter, if necessary, from the moment charged through all appeals. Defendants have the right to confront witnesses against them, to present their own witnesses and evidence, and not to be compelled to testify or to confess guilt. On April 29, a law came into force which prohibits offenders in domestic abuse cases from cross-examining their victims in person in specific cases likely to “diminish the quality of the witness’s evidence or cause significant distress to the witness.” In such cases the court has the power to appoint a legal representative to carry out cross-examination. Defendants have the right to appeal adverse verdicts.

In Bermuda the law requires defendants to declare to the prosecutor and the court within 28 days of their arraignment whether they intend to give evidence at their trial. Failure to do so permits the court to direct the jury to draw inferences from the defendant’s refusal to testify.

Political Prisoners and Detainees

There were no reports of political prisoners or detainees.

Civil Judicial Procedures and Remedies

Individuals, NGOs, and groups of individuals may seek civil remedies for human rights violations and have the right to appeal to the European Court of Human Rights decisions involving alleged violations by the government of the European Convention on Human Rights.

In Bermuda the Human Rights Tribunal adjudicates complaints.

Property Seizure and Restitution

The government has laws and mechanisms in place, and NGOs and advocacy groups reported that the government made significant progress on resolution of Holocaust-era claims, including for foreign citizens.

The Department of State's Justice for Uncompensated Survivors Today (JUST) Act report to Congress, which covers Holocaust-era restitution, remembrance, education, and related issues, was released publicly in July 2020. The report is available on the Department's website at: <https://www.state.gov/reports/just-act-report-to-congress/>.

f. Arbitrary or Unlawful Interference with Privacy, Family, Home, or Correspondence

The law prohibits such actions, and there were no reports that the government failed to respect these prohibitions.

Section 2. Respect for Civil Liberties

a. Freedom of Expression, Including for Members of the Press and Other Media

The law provides for freedom of expression, including for the press, and the government routinely respected these rights. An independent press, an effective judiciary, and a functioning democratic political system combined to promote freedom of expression, including for members of the media.

Freedom of Expression: The law prohibits expressions of hatred toward persons

because of their color, race, nationality (including citizenship), ethnic or national origin, religion, or sexual orientation as well as any communication that is deemed threatening or abusive and is intended to harass, alarm, or distress a person. The penalties for such expressions include fines, imprisonment, or both.

Freedom of Expression for Members of the Press and Other Media, Including Online Media: The law's restrictions on expressions of hatred apply to the print and broadcast media. In Bermuda the law prohibits publishing written words that are threatening, abusive, or insulting, but only on racial grounds; on other grounds, including sexual orientation, the law prohibits only discriminatory "notices, signs, symbols, emblems, or other representations."

Violence and Harassment: On February 12, graffiti appeared in Belfast threatening Patricia Devlin, a reporter for the Irish newspaper *Sunday World*, with serious harm and even death. Devlin has been the target of continual threats since 2019.

On August 28, a group of demonstrators protesting the government's COVID-19 restrictions surrounded journalist Phillip Norton and his crew in Scarborough and threatened to hang them.

In August charges were brought against two suspects for the killing of freelance reporter Lyra McKee in April 2019 in Londonderry, Northern Ireland.

Libel/Slander Laws: In the British Virgin Islands the law criminalizes with imprisonment for up to 14 years and a fine "sending offensive messages through a computer." The law applies to a message that is "grossly offensive or has menacing character" or that is sent "for the purpose of causing annoyance or inconvenience." Media freedom NGOs strongly criticized the law.

Internet Freedom

The government did not restrict or disrupt access to the internet or censor online content, and there were no credible reports that the government monitored private online communications without appropriate legal authority. The country has no blanket laws covering internet blocking, but the courts have issued blocking injunctions against various categories of content such as depictions of child sexual

abuse, promotion of violent extremism and terrorism, and materials infringing on copyrights.

By law the electronic surveillance powers of the country's intelligence community and police allow them, among other things, to check internet communications records as part of an investigation without a warrant.

Academic Freedom and Cultural Events

There were no government restrictions on academic freedom or cultural events. Some restrictions imposed by the government to cope with the COVID-19 pandemic were reinstated or lifted depending on case numbers.

b. Freedoms of Peaceful Assembly and Association

The law provides for the freedoms of peaceful assembly and association, and the government routinely respected these rights. Under emergency COVID-19 legislation, the government banned mass gatherings. In April the government officially banned the Atomwaffen Division and its successor organization, the National Socialist Order, as criminal terrorist groups. Membership in either organization carries a prison sentence of up to 10 years.

c. Freedom of Religion

See the Department of State's *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

d. Freedom of Movement and the Right to Leave the Country

The law provides for freedom of internal movement, foreign travel, emigration, and repatriation, and the government routinely respected these rights.

In-country Movement: The home secretary may impose terrorism prevention and investigation measures (TPIMs) based on a "balance of probabilities." TPIMs are a form of house arrest applied for up to two years to those thought to pose a terrorist threat but who cannot be prosecuted or deported. The 14 measures include electronic tagging, reporting regularly to the police, and facing "tightly defined exclusion from particular places and the prevention of travel overseas." A

suspect must live at home and stay there overnight, possibly for up to 10 hours daily. Authorities may send suspects to live up to 200 miles from their normal residence. The suspect may apply to the courts to stay elsewhere. The suspect may use a mobile phone and the internet to work and study, subject to conditions.

Exile: The law permits the home secretary to impose “temporary exclusion orders” (TEOs) on returning UK citizens or legal residents if the home secretary reasonably suspects the individual in question is or was involved in terrorism-related activity and considers the exclusion necessary to protect individuals in the UK from a risk of terrorism. TEOs impose certain obligations on the repatriates, such as periodic reporting to police. The measure requires a court order and is subject to judicial oversight and appeal.

In May a UK high court issued a preliminary ruling that the restrictions imposed on individuals under TEOs must be in accordance with the provision of the European Convention on Human Rights providing for a fair trial. The ruling allows those under TEOs to know the evidence against them and to contest the terms of their obligations.

Citizenship: The law allows the home secretary to deprive an individual of citizenship if officials are satisfied this is “conducive to the public good,” but not if this renders a citizen stateless.

In 2019 the home secretary started the process of revoking the citizenship of Shamima Begum, a 22-year-old British citizen by birth of Bangladeshi extraction who left the UK to join ISIS. Because Begum was British by birth, the home secretary could only cancel her British citizenship if she were a dual national. The home secretary asserted that Begum held dual citizenship with Bangladesh. Begum’s lawyers disputed that she had Bangladeshi citizenship. In February the Supreme Court overturned the ruling of the Court of Appeal of England and Wales in July 2020 that Begum should be allowed to return to the UK to appeal against being stripped of her British citizenship. The Supreme Court decided Begum cannot return to the UK to contest her case and ordered the appeal to be stayed until she is in a “position to play an effective part in it without the safety of the public being compromised.”

e. Status and Treatment of Internally Displaced Persons:

Not applicable.

f. Protection of Refugees

The government cooperated with the Office of the UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations in providing protection and assistance to refugees, asylum seekers, stateless persons, or other persons of concern.

Access to Asylum: In England, Scotland, Wales, and Northern Ireland, the law provides for granting asylum or refugee status, and the government has established a system for providing protection to refugees. Asylum is a matter reserved for the UK government and is handled centrally by the Home Office. Bermuda's constitution and laws do not provide for granting asylum or refugee status, and the government does not have an established system for providing protection to refugees.

NGOs criticized the government's handling of asylum seekers crossing the English Channel from France.

Safe Country of Origin/Transit: Due to Brexit, the UK has not enacted a system to replace the EU's Dublin III Regulation, making the transfer of migrants back to another country very difficult. Those claiming asylum must prove they cannot return to their home country because of fear of persecution. On November 22, the government announced that 23,000 persons arrived in the UK via small boats during the year, compared with 8,500 in 2020. Of those migrants arriving during the year, only five were returned to EU countries. For the duration of their asylum application, asylum seekers are eligible for government support at 30 percent below the normal rate for their family size, an amount that NGOs continued to deem inadequate. NGOs continued to criticize the government for cutting off benefits 28 days after a person is granted refugee status, which NGO stated left some persons destitute.

Abuse of Migrants and Refugees: Home Office officials have the power to detain asylum seekers and unauthorized migrants who do not enter the asylum

system. There was no maximum time limit for the use of detention. Immigration detention was used to establish a person's identity or basis of claim, to remove a person from the country, or to avoid a person's noncompliance with any conditions attached to a grant of temporary admission or release.

In May authorities released two men detained in Glasgow by UK Immigration Enforcement following a day-long standoff between immigration officials and hundreds of local residents who had surrounded the officials' van in a residential street, preventing the removal of the men. Observers criticized authorities' "dawn raid" tactics and organizing the detention during the Eid al-Fitr holiday in a community with a large Muslim population.

Temporary Protection: The government may provide temporary protection to individuals who may not qualify as refugees. In the year ending in June, the government granted humanitarian protection to 852 individuals (down 39 percent from 2020), 429 grants of alternative forms of leave (down 52 percent), and 644 grants of protection through resettlement schemes.

g. Stateless Persons

According to UNHCR, at the end of 2020, 4,662 stateless persons resided in the country. The government provides a route to legal residence for up to five years for stateless persons resident in the country. After the initial five-year period, stateless persons are able to apply for "settled status" or further extension of their residency. The government did not publish data on the number of habitual residents who are legally stateless.

Section 3. Freedom to Participate in the Political Process

The law provides citizens the ability to choose their government in free and fair periodic elections held by secret ballot and based on universal and equal suffrage. In Scotland 16- and 17-year-olds may vote in Scottish elections, as may all foreign nationals with limited or indefinite permission to remain in Scotland.

Elections and Political Participation

Recent Elections: UK general parliamentary elections were held in 2019.

Bermuda held elections to the House of Assembly in October 2020. Elections to the Northern Ireland Assembly were last held in 2017. Scottish parliamentary elections were held in May. Independent observers reported no abuses or irregularities in any of the elections.

Participation of Women and Members of Minority Groups: No laws limit the participation of women or members of minority groups in the political process, and they did participate.

Section 4. Corruption and Lack of Transparency in Government

The law provides criminal penalties for corruption by officials, and the government implemented the law effectively. There were no reports of government corruption during the year. In April the government implemented a new sanctions regime that allows it to impose asset freezes and travel bans on individuals and entities determined to have committed or to have been involved in serious corruption, specifically, bribing or misappropriating property from a foreign public official or benefitting from such bribery or misappropriation.

Section 5. Governmental Posture Towards International and Nongovernmental Investigation of Alleged Abuses of Human Rights

A wide variety of domestic and international human rights groups operated without government restriction, investigating and publishing their findings of human rights cases. Government officials were routinely cooperative and responsive to their views.

Government Human Rights Bodies: Parliament has a Joint Committee on Human Rights composed of 12 members selected from the House of Lords and the House of Commons. The committee investigates human rights matters in the country and scrutinizes legislation affecting human rights. It may call for testimony from government officials, who routinely comply.

The Equality and Human Rights Commission (EHRC) is an independent,

nondepartmental public body that promotes and monitors human rights and protects, enforces, and promotes equality across nine “protected” grounds: age, disability, gender, race, religion and belief, pregnancy and maternity, marriage and civil partnership, sexual orientation, and gender reassignment. The sponsoring department was the Government Equalities Office. The commission was considered effective.

The Scottish Human Rights Commission, which is accountable to the Scottish Parliament, monitors and protects human rights in the region.

The Northern Ireland Human Rights Commission, sponsored by the Northern Ireland Office, and the Equality Commission for Northern Ireland, sponsored by the Office of the First Minister and Deputy First Minister, monitor human rights in that province. Both entities were considered effective.

In Bermuda the Human Rights Commission is an independent body that effectively administered human rights law through the investigation and resolution of complaints lodged with it.

Section 6. Discrimination and Societal Abuses

Women

Rape and Domestic Violence: The law criminalizes rape of both women and men, including spousal rape. The maximum legal penalty for rape is life imprisonment. The law also provides for injunctive relief, personal protection orders, and protective exclusion orders (similar to restraining orders) for survivors of gender-based violence. The government enforced the law effectively in reported cases. Courts in some cases imposed the maximum punishment for rape. The government provided shelters, counseling, and other assistance for survivors of rape or violence. NGOs warned that police and Crown Prosecutorial Services have raised the bar for evidence needed, causing survivors to drop out of the justice process. The Crown Prosecution Service was in the second year of a five-year plan for the prosecution of rape and serious sexual offenses (RASSO) to help reduce the gap between reported cases and prosecutions. The plan is committed to improving cooperation between police and prosecutors, fully resourcing RASSO units, and

training to improve communication with victims.

The law criminalizes domestic violence. Those who abuse spouses, partners, or family members face tougher punishment than those who commit similar offenses in a nondomestic context. The government estimated that there were 2.3 million survivors of domestic abuse a year between the ages of 16 and 74 (two-thirds of whom were women), and more than one in 10 of all offenses recorded by the police were domestic abuse-related. On April 29, the Domestic Abuse Act became law. It creates a statutory definition of domestic abuse, establishes the office of Domestic Abuse Commissioner, provided for a new Domestic Abuse Protection Notice and Domestic Abuse Protection Order, and requires local authorities in England to provide accommodation-based support to survivors of domestic abuse and their children in refuges and other safe accommodation. The act no longer allows accused perpetrators to cross-examine witnesses in the courts and establishes a statutory presumption that survivors of domestic abuse are eligible for special measures in the criminal, civil, and family courts. It also widened the offense of disclosing private sexual photographs and films with intent to cause distress, established nonfatal strangulation or suffocation of another person as a new offense, and clarified in statute law the general proposition that a person may not consent to the infliction of serious harm and, by extension, is unable to consent to his or her own death.

On July 21, the government published its *Tackling Violence Against Women and Girls Strategy* to tackle the crimes of rape, female genital mutilation/cutting, stalking, harassment, and digital crimes such as cyberflashing, “revenge porn,” and “up-skirting.”

Domestic abuse incidents in Scotland reached a 20-year high over 2019/20, with Police Scotland recording 63,000 incidents. Government officials suggested an awareness campaign to encourage survivors to report abuse helped drive the increase.

Police in Northern Ireland recorded 31,174 domestic abuse incidents (19,612 crimes) from June 2020 to July 2021, the highest total for a 12-month period since 2004/05. In January the Northern Ireland Assembly passed domestic abuse legislation criminalizing coercive control in the region for the first time.

Female Genital Mutilation/Cutting (FGM/C): The law prohibits FGM/C and requires health and social care professionals and teachers to report to police cases of FGM/C on girls younger than age 18. It is also illegal to take a British national or permanent resident abroad for FGM/C or to help someone trying to do so. The penalty is up to 14 years in prison. An FGM/C protection order, a civil measure that can be applied for through a family court, offers the means of protecting survivors or at-risk women and girls from FGM/C under the civil law. Breach of an FGM/C protection order is a criminal offense carrying a sentence of up to five years in prison.

FGM/C is illegally practiced in the country, particularly within some diaspora communities from countries where FGM/C is prevalent. The National Health Service reported 2,165 newly recorded cases between January and September.

The government took nonjudicial steps to address FGM/C, including awareness-raising efforts, a hotline, and requiring medical professionals to report FGM/C observed on patients.

Sexual Harassment: The law criminalizes sexual harassment at places of work. Authorities used different laws to prosecute cases of harassment outside the workplace.

Reproductive Rights: There were no reports of coerced abortion or involuntary sterilization on the part of government authorities. The government provided access to sexual and reproductive health services for survivors of sexual violence. Health policy was devolved to constituent parts of the country.

Discrimination: The law provides the same legal status and rights for women and men. The government enforced the law effectively. Women were subject to some discrimination in employment (see also section 7.d.).

Systemic Racial or Ethnic Violence and Discrimination

The law prohibits racial and ethnic discrimination, but Travelers, Roma, and persons of African, Afro-Caribbean, South Asian, and Middle Eastern origin at times reported mistreatment on racial or ethnic grounds.

The majority of hate crimes were racially motivated, accounting for around three-quarters of such offenses (74 percent; 85,268 offenses), an increase of 12 percent.

On May 31, the UN Subcommittee on the Prevention of Torture reported on its visit to the country in 2019. It found persons from Black, Asian, and other minority ethnic groups were over four times more likely to be detained than persons from White ethnic groups. Black Caribbean persons experienced particularly high rates of detention. Those from ethnic minorities were more likely to be subject to restraint and other restrictive practices and to experience disproportionate numbers of deaths in custody and in mental health care. Both male and female individuals from ethnic minorities were significantly overrepresented in prisons, which was attributed to a number of factors including discriminatory sentencing. In 2018 a total of 27 percent of the prison population identified as an ethnic minority, compared with 13 percent of the general population.

In September, Human Rights Watch reported that in the country, black persons were nine times more likely to be stopped and searched, and four times more likely to have force used against them by police than a white person. A black child was four times more likely to be arrested, and three times more likely to be given a caution or sentence. Blacks were also disproportionately represented in the prison population and continued to die at disproportionate rates in custody. A black woman was five times more likely to die in childbirth.

The government responded to nationwide antiracist demonstrations in 2020 by announcing a cross-governmental commission. On March 31, the government's Commission on Race and Ethnic Disparities reported it did not find the system was "deliberately rigged against ethnic minorities." The report acknowledged impediments and disparities existed but stated "very few of them are directly to do with racism." It added that racism was "too often" used as a catchall explanation.

In Scotland racial or other discriminatory motivation may be an "aggravating factor" in crimes. Race-based hate crime was the most commonly reported hate crime in Scotland, accounting for 3,285 charges in 2020/21, an increase of 6 percent on the previous year.

“Right to Rent” rules require all landlords in England to check the immigration documents of prospective tenants to verify they were not irregular or undocumented migrants. Landlords may be fined up to 3,000 pounds (\$3,960) for noncompliance.

On March 11, the Scottish Parliament extended protection for vulnerable groups with a new offense of “stirring up hatred.” Under the bill offenses are considered “aggravated” when involving age, disability, race, religion, sexual orientation, transgender identity, or variations in sex characteristics.

In Northern Ireland, 839 racially motivated crimes were recorded in the period July 2020 to June 2021, an increase of 238 compared to the previous 12 months.

Children

Birth Registration: A child born in the UK receives the country’s citizenship at birth if one of the parents is a UK citizen or a legally settled resident. Children born in Northern Ireland may opt for UK, Irish, or dual citizenship. A child born in an overseas territory is a UK overseas territories citizen if at least one of the child’s parents has citizenship. All births must be registered within 42 days in the district where the baby was born; unregistered births were uncommon.

Child Abuse: Laws make the abuse of children punishable by up to a maximum sentence of 14 years’ imprisonment. Social service departments in each local authority in the country maintained confidential child protection registers containing details of children at risk of physical, emotional, or sexual abuse or neglect. The registers also included child protection plans for each child.

Child, Early, and Forced Marriage: The minimum legal age for marriage is 16. In England, Northern Ireland, and Wales, persons younger than 18 require the written consent of parents or guardians, and the underage person must present a birth certificate. The legal minimum age to enter into a marriage in Scotland is 16 and does not require parental consent.

Forcing someone to marry against his or her will is a criminal offense throughout the country with a maximum prison sentence of seven years. Forcing a UK citizen into marriage anywhere in the world is a criminal offense in England and Wales.

In 2020 the joint Foreign, Commonwealth, and Development Office and the Home Office Forced Marriage Unit (FMU) provided support in more than 759 cases of potential or confirmed forced marriage involving UK citizens, which represented a 44 percent decrease from 2019, attributable to restrictions on overseas travel and weddings due to the COVID-19 pandemic. Of the cases that the FMU provided advice or support to in 2020, 199 cases (26 percent) involved victims younger than 18 years, 278 cases (37 percent) involved victims ages 18-25, 66 cases (9 percent) involved victims with mental capacity concerns, 603 cases (79 percent) involved female victims, and 156 cases (21 percent) involved male victims.

Assistance included safety advice as well as “reluctant spouse cases” in which the government assisted forced marriage victims in preventing their unwanted spouse from moving to the UK. The government offers lifelong anonymity for victims of forced marriage to encourage more to come forward.

In Scotland, 12 cases of forced marriage were reported in 2020, down from 22 in 2018.

Sexual Exploitation of Children: The penalties for sexual offenses against children and the commercial sexual exploitation of children range up to life imprisonment. Authorities enforced the law. The law prohibits child pornography. The minimum age of consensual sex is 16.

International Child Abductions: The UK, including Bermuda, is party to the 1980 Hague Convention on the Civil Aspects of International Child Abduction. See the Department of State’s *Annual Report on International Parental Child Abduction* at <https://travel.state.gov/content/travel/en/International-Parental-Child-Abduction/for-providers/legal-reports-and-data/reported-cases.html>.

Anti-Semitism

The 2011 census recorded the Jewish population at 263,346. The Institute for Jewish Policy Research and the British Board of Deputies suggested that the actual figure in 2011 was approximately 300,000. A new census was carried out during the year, but the figures were not released before year’s end.

The semiannual report of the NGO Community Security Trust (CST) recorded

1,308 anti-Semitic incidents during the first six months of the year, the highest number the CST has recorded for that period and an increase of 49 percent from the same period in 2020. Of this number, 639 occurred in May. The CST noted the number of reports fluctuated with tensions between Israel and the Palestinians. In educational settings, a total of 130 incidents occurred in schools or during travel to or from school; of these, 21 incidents happened in Jewish schools. There were 355 reported anti-Semitic incidents online.

The CST recorded 87 violent anti-Semitic assaults during the first half of the year, a 67 percent increase from the same period in 2020. Two of the violent incidents were classified by the CST as “extreme violence,” meaning the incident involved potential grievous bodily harm or a threat to life. There were 56 incidents of damage and desecration of Jewish property and 1,073 incidents of abusive behavior, including verbal abuse, graffiti including on non-Jewish property, social media, and hate mail, an increase of 45 percent from the same period in 2020.

The CST recorded 748 anti-Semitic incidents in Greater London in the first half of the year, an increase of 51 percent from 2020. The 181 incidents the CST recorded in Greater Manchester represented an increase of 159 percent from the same period in 2020. Elsewhere in the country, the CST recorded an anti-Semitic incident in all but four of the 43 police regions, compared with nine regions in the first half of 2020.

In September police arrested a man for six assaults on Jews in the London area. On September 20, Mohammed Iftikhar Hanif, Jawaad Hussain, Asif Ali, and Adil Mota were charged with shouting anti-Semitic abuse while driving around in a convoy in north London on May 16. In December police launched an investigation following an incident in which three men were filmed spitting and yelling anti-Semitic abuse at Jewish passengers celebrating Hanukkah on a privately chartered bus on Oxford Street in London. In December 2020 neo-Nazi Luke Hunter was convicted in Leeds after pleading guilty to seven charges of promoting terrorism and circulating material from terrorist publications against Jews, the lesbian, gay, bisexual, transgender, queer, and intersex (LGBTQI+) community, and non-White minorities. He was sentenced to a jail term of four years and two months.

In September Labour Party leader Sir Keir Starmer said the party had “closed the

door” on the “dark chapter” on anti-Semitism with the introduction of new rules to tackle it. Labour published its plan for a major overhaul in response to a highly critical report by the EHRC into its handling of anti-Semitism complaints under former leader Jeremy Corbyn. Reforms included a fully independent complaints process to deal with anti-Semitism. The Board of Deputies of British Jews welcomed the new approach adopted by the party. Jewish Labour member of parliament Dame Margaret Hodge said there was “enormous relief and immeasurable hope to every Labour Party member who has been a victim of vile anti-Jew hate.” Former Labour member of parliament Louise Ellman, who quit Labour over its handling of anti-Semitism, rejoined following the rule changes and said she was “confident” leader Sir Keir Starmer was tackling the issue.

Former Labour leader Jeremy Corbyn remained suspended from the party for refusing to apologize for saying that while the problem (of anti-Semitism) was “absolutely abhorrent,” the scale of the problem was “dramatically overstated for political reasons by our opponents,” and for refusing to retract his words.

In January, Scottish justice minister Hamza Yousaf condemned anti-Semitic abuse against the Celtic soccer club’s Israeli midfielder, Nir Bitton, noting that “anti-Semitism deserves the same contempt as Islamophobia or any other prejudice.”

In April the Northern Ireland Assembly adopted the International Holocaust Remembrance Alliance’s (IHRA) definition of anti-Semitism. The motion, which passed by oral vote, was opposed by some members of the Legislative Assembly who argued the IHRA definition prevents legitimate criticism of the state of Israel. In April, 10 Jewish graves were vandalized in Belfast, Northern Ireland. In the same month, headstones in a Jewish cemetery were destroyed in what police stated was a hate crime. The incident was condemned by all political parties in Northern Ireland.

In May a Jewish-owned business in Londonderry was vandalized with graffiti. Police initiated an investigation into the incident.

Trafficking in Persons

See the Department of State’s *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Persons with Disabilities

The law prohibits discrimination against persons with physical, sensory, intellectual, and mental disabilities. Government enforcement of rules governing access was inadequate.

Bermudian law protects the rights of persons with disabilities in the workplace. The law does not include any protection from discrimination on mental health grounds.

According to the government's *UK Disability Survey Research Report, June 2021*, which surveyed 14,491 individuals to inform the development of its National Disability Strategy, over a quarter of respondents with disabilities often had difficulty accessing public buildings, while one in three respondents with disabilities often had difficulty accessing public spaces. Many persons with disabilities and carers who had trouble accessing public buildings also reported difficulty accessing important public services. Respondents reported cases of insufficient access to privately owned buildings used by the public, such as shops, bars, restaurants, and cafes. Many persons with disabilities and carers reported that they live in homes, which do not meet their needs to live independently or to provide care, or that they have needed to make significant adjustments to their homes to meet accessibility requirements.

In July a deaf woman won a High Court action against the government after arguing it had breached its obligations to make broadcasts accessible to deaf individuals under equality legislation. The court ruled the absence of interpretation constituted discrimination.

Children with disabilities attended school through secondary education at similar rates to children without disabilities. The law requires all publicly funded preschools, nurseries, state schools, and local authorities to try to identify, help assess, and provide reasonable accommodation to children with "special educational needs or disabilities."

According to the UK Disability Survey, only one in 10 respondents with disabilities to the survey agreed that persons with disabilities are given the educational opportunities they need to thrive in society. Over half of respondents

with disabilities not employed reported that they would like more help finding and keeping a job. Of those employed, half of respondents with disabilities felt their employer was flexible and made sufficient reasonable adjustments, and half of care givers felt their employer was supportive of their caring responsibilities. Only a quarter of persons with disabilities and care givers felt they had the same promotion opportunities as their colleagues.

Over half of respondents to the UK Disability Survey reported worrying about being insulted or harassed in public places, and a similar proportion reported being mistreated because of their disability. In the year ending in March, police in England and Wales recorded 9,943 disability hate crimes. According to disability rights organizations United Response and Leonard Cheshire, only 1 percent of alleged hate crime cases across England and Wales in 2020/21 were referred to the Crown Prosecution Service or charged.

In April former Metropolitan Police officer Benjamin Kemp was dismissed from his job after the Independent Office for Police Conduct determined he used excessive force against a 17-year-old girl with learning disabilities in 2019. Kemp reportedly used tear gas spray and struck the girl over 30 times with a baton. A spokesperson for the Crown Prosecution Service stated, “prosecutors carefully considered the evidence passed to them by the Independent Office for Police Conduct in 2019 and determined that, taking into account the circumstances of this particular incident, their legal test was not met” to charge Kemp.

The Crown and Procurator Fiscal’s Office, Scotland’s prosecutor, reported in June that the number of recorded hate crimes against persons with disabilities rose by 29 percent to 387 in 2019/20.

The EHRC provided legal advice and support to individuals and a hotline. It could also conduct formal investigations, arrange conciliation, require persons or organizations to adopt action plans to ensure compliance with the law, and apply for injunctions to prevent acts of unlawful discrimination.

Acts of Violence, Criminalization, and Other Abuses Based on

Sexual Orientation and Gender Identity

There were no reports of police or other government agents inciting, perpetrating, or condoning violence against LGBTQI+ individuals or those reporting on such abuse. There were reports of violence and discrimination based on sexual orientation or gender identity against LGBTQI+ persons.

The law in England and Wales prohibits discrimination and harassment based on sexual orientation. It encourages judges to impose a greater sentence in assault cases where the victim's sexual orientation was a motive for the hostility, and many local police forces demonstrated an increasing awareness of the problem and trained officers to identify and moderate these attacks. The government generally enforced the law. In the year ending in March, police in England and Wales recorded 124,091 hate crimes, of which 18,596 were sexual-orientation hate crimes and 2,799 were transgender hate crimes.

Sexual motivation may be an "aggravating factor" in crimes. Crime aggravated by sexual orientation was the second most common type of hate crime in Scotland. Hate crime against LGBTQI+ persons accounted for 1,580 charges in 2020/21, an increase of 5 percent year on year. According to figures obtained by Vice World News, the number of homophobic hate crimes in the UK has tripled and the number of transphobic hate crime reports quadrupled over the last six years. Figures received through responses to freedom of information requests from police forces across the country showed there were 6,363 reports of hate crimes based on sexual orientation in 2014/15, compared to 19,679 in 2020/21. For reports of transphobic hate crimes, there were 598 in 2014/15 and 2,588 in 2020/21.

Statistics from the Police Service of Northern Ireland showed 262 homophobic crimes and 33 transphobic crimes.

In June, LGBTQI+ NGO Galop reported that only one in five LGBTQI+ persons surveyed were able to access support after experiencing a hate crime. Galop reported that only one in eight LGBTQI+ persons surveyed had reported the most recent incident they had experienced to the police, with over half saying they thought the police would not do anything, and almost a third who did not submit a report did not because they mistrusted or were fearful of the police.

In October police arrested a second man on suspicion of murdering Ranjith “Roy” Kankanamalage in a suspected homophobic attack that occurred in August. As of November the investigation was ongoing.

Observers reported individuals identifying as LGBTQI+ were more likely to experience worse health outcomes than the general population, found it harder to access services, and had poorer experiences of using services when they were able to access them. According to the report *Trans lives survey 2021: Enduring the UK’s hostile environment* published in September by NGO TransActual UK, one in seven transgender persons have been refused care or treatment by their general practitioner because they were transgender.

In October the minister for women and equalities vowed to protect LGBTQI+ persons, and especially those under 18, from harmful conversion therapies. The government launched consultations and published its proposals on how to make coercive conversion therapies illegal. According to some observers, the government’s proposals would still leave individuals over 18 open to abuse.

According to a report published in September by the Universities and Colleges Admissions Service in partnership with LGBTQI+ rights NGO Stonewall, UK’s LGBTQI+ students increasingly view the education system as a space where they feel safe and free to be themselves. The report also stated that individuals identifying as transgender tend to have a less positive experience, with these individuals being less likely to be open about their gender identity, and more likely to have a health condition and achieve lower grades. A report titled *Growing up LGBTQI+* published by Just Like Us in June stated LGBTQI+ students were twice as likely to have been bullied and 91 percent had heard negative language about being LGBTQI+.

Other Societal Violence or Discrimination

Hate speech, notably against Muslims, in some traditional media, particularly tabloid newspapers, continued to be a problem, with dissemination of biased or ill-founded information. Online hate speech also was a problem. There were also instances of societal violence against Muslims and attacks on mosques. In May worshippers attending a mosque during Ramadan were pelted with eggs. In

September an individual set fire to a Manchester mosque, an act that authorities investigated as a hate crime.

Scottish law criminalizes behavior that is threatening, hateful, or otherwise offensive at a regulated soccer match, and penalizes any threat of serious violence and threats to incite religious hatred through the mail or the internet.

In Northern Ireland crimes related to faith or religion totaled 37 for the same period, an increase of 22 from the previous year. Sectarian crimes increased by 170 to 804.

Section 7. Worker Rights

a. Freedom of Association and the Right to Collective Bargaining

The law provides for the right of workers to form and join independent unions, bargain collectively, and conduct legal strikes. The law does not cover workers in the armed forces, public-sector security services, police forces, and freelance or temporary work. The law prohibits antiunion discrimination and protects employees from unfair dismissal while striking for up to 12 weeks, provided the union has complied with the legal requirements governing such industrial action. The majority of a union's members must support the industrial action, as demonstrated through an official ballot, and the union must then inform its members and the employer when and how the industrial action will take place.

The law allows strikes to proceed only when at least 50 percent of workers who participate in a secret ballot support it, and workers have provided 14-day notification of strike action. For "important public services," defined as health services, education for those younger than 17, fire services, transport services, nuclear decommissioning and the management of radioactive waste and spent fuel, and border security, 40 percent of all eligible union members must vote in favor of the strike action, and ballots require at least a 50 percent turnout to be valid and for strike action to be legal. According to the International Trade Union Confederation (ITUC), the right to strike in the UK is "limited" due to prohibitions against political and solidarity strikes, lengthy procedures for calling strikes, and the ability of employers to seek injunctions against unions before a strike has

begun if the union does not observe all legal steps in organizing the strike.

The government generally enforced the law. Remedies were limited in situations where workers faced reprisal for union activity, and ITUC stated that the law does not provide “adequate means of protection against antiunion discrimination.”

Penalties range from employers paying compensation to reinstatement and were commensurate with those for similar violations. Inspection was sufficient to enforce compliance. The Department for Business, Energy, and Industrial Strategy funded the Advisory, Conciliation, and Arbitration Service (ACAS), which works to help employees and employers better adhere to collective bargaining and other workplace laws and to improve workplace relationships. If ACAS is not able to settle a dispute, a claim can be brought to the Employment Tribunal.

The government and employers routinely respected freedom of association and the right to collective bargaining. The law allows any workplace with more than 21 workers to organize into a collective bargaining unit if 50 percent of workers agree and the employer accepts the terms. Unions and management typically negotiated collective “agreements,” which were less formal and not legally enforceable. The terms of the agreement could, however, be incorporated into an individual work contract with legal standing.

The law does not allow independent trade unions to apply for de-recognition of in-house company unions or to protect individual workers seeking to do so. The effect has been that some in-house company unions operate with a membership less than the majority of workers.

Trade union membership levels rose for four consecutive years since 2017, driven by the increase in female members and public-sector workers. According to the ONS, 6.56 million employees were trade union members in 2019. Membership levels were below the 1979 peak of more than 13 million.

b. Prohibition of Forced or Compulsory Labor

The law prohibits all forms of forced and compulsory labor.

The law permits punishment of up to life imprisonment for all trafficking and slavery offenses, including sexual exploitation, labor exploitation, and forced

servitude. Firms with a global turnover of 36 million pounds (\$47.5 million) that supply goods or services in the UK must by law publish an annual statement setting out what steps they are taking to ensure that forced labor is not being used in their operations and supply chain. Foreign companies and subsidiaries that “carry on a business” in the UK also must comply with this law. The law allows courts to impose reparation orders on convicted traffickers and prevention orders to ensure that those who pose a risk of committing human trafficking offenses cannot work in relevant fields, such as with children.

The government effectively enforced the law. Resources and inspections were generally adequate, and penalties were commensurate with other sentences for serious crimes.

Forced labor occurred in the UK involving both foreign and domestic workers, mainly in sectors characterized by low-skilled, low-paid manual labor and heavy use of flexible, temporary workers. Those who experienced forced labor practices tended to be poor, living on insecure and subsistence incomes and in substandard accommodations. Forced labor was normally more prevalent among men, women, and children of the most vulnerable minorities or socially excluded groups. The majority of victims were British nationals including minors or young adults forced by criminal gangs to sell drugs.

Albania and Vietnam were the most likely foreign countries of origin for forced labor. Most labor migrants entered the country legally. Many migrants used informal brokers to plan their journey and find work and accommodation in the UK, enabling the brokers to exploit the migrants through high fees and to channel them into forced labor situations. Many with limited English were vulnerable and trapped in poverty through a combination of debts and constrained opportunities. Migrants were forced to share rooms with strangers in overcrowded houses, and often the work was just sufficient to cover rent and other subsistence charges. Forced labor was the most common form of exploitation reported in the UK, followed by sexual exploitation. Migrant workers were subject to forced labor in agriculture (especially in marijuana cultivation), construction, food processing, service industries (especially nail salons), and on fishing boats. Women employed as domestic workers were particularly vulnerable to forced labor.

In Bermuda there were no reported cases of forced labor during the year. The government effectively enforced the law. Expatriate workers are required to obtain a work permit based on the type of work and the expected length of time of employment in Bermuda. The law requires employers to repatriate work-permit holders. Failure to do so has been a migrant complaint. Cases of worker exploitation largely consisted of employers requiring workers to work longer hours or to perform work outside the scope of their work permit, threatening the status of their permit. Penalties for forced labor were generally commensurate with those for similar serious crimes.

Also see the Department of State's *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

c. Prohibition of Child Labor and Minimum Age for Employment

The law prohibits all the worst forms of child labor. The law prohibits the employment of children younger than 13 with exceptions for sports, modeling, and paid performances, which may require a child performance license, depending on local bylaws. Children younger than 18 are prohibited from working in hazardous environments or after 7 p.m. The law prohibits those younger than 16 from working in an industrial enterprise, including transportation or street trading. Children's work hours are strictly limited and may not interfere with school attendance. Different legislation governs the employment of persons younger than 16 and, while some laws are common across the UK, local bylaws vary. If local bylaws so require, children between the ages of 13 and 16 must apply for a work permit from a local authority. The local authority's education and welfare services have primary responsibility for oversight and enforcement of the permits.

The government effectively enforced the law. The Department for Education has primary regulatory responsibility for child labor, although local authorities generally handled enforcement. Penalties were commensurate with equally severe crimes.

In Bermuda, children younger than 13 may perform light work of an agricultural, horticultural, or domestic character if the parent or guardian is the employer. Schoolchildren may not work during school hours or more than two hours on

school days. No child younger than 15 may work in any industrial undertaking, other than light work, or on any vessel, other than a vessel where only family members work. Children younger than 18 may not work at night except that those ages 16 to 18 may work until midnight; employers must arrange for safe transport home for girls between ages 16 and 18 working until midnight. Penalties were commensurate with those for similar crimes, and inspection was sufficient to enforce compliance. The government effectively enforced the law. The Bermuda Police Service reported no cases of child labor or exploitation of children during the year.

No cases of child labor were reported in overseas British territories, but gaps in the law made children vulnerable. The governments of Anguilla, the British Virgin Islands, the Falkland Islands (Islas Malvinas), Montserrat, and St. Helena-Ascension-Tristan da Cunha have not developed a list of hazardous occupations prohibited for children. On Anguilla the minimum age for labor is 12 and for hazardous work is 14, allowing children to engage in work deemed hazardous.

There are legislative gaps in the prohibition of trafficking in children for labor exploitation and the use of children for commercial sexual exploitation on the Falkland Islands (Islas Malvinas) and St. Helena-Ascension-Tristan da Cunha. While criminal laws prohibit trafficking in children for sexual exploitation, they do not address trafficking in children for labor exploitation. Laws do not exist in Monserrat regarding the use of children in drug trafficking and other illicit activities. Traffickers subjected children to commercial sexual exploitation in Turks and Caicos.

Also see the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings> for information on UK territories.

d. Discrimination with Respect to Employment and Occupation

The law prohibits discrimination in employment or occupation regarding race, color, sex, religion or belief, political opinion, national origin or citizenship, social origin, disability, sexual orientation, gender identity or reassignment, marriage and civil partnership, being pregnant or on maternity leave, age, language, or HIV or

other communicable disease status. The government effectively enforced these laws and regulations.

Discrimination in employment and occupation occurred with respect to race, gender, and sexual orientation and gender identity. Women were paid less than men, and persons with disabilities faced discrimination in hiring, access to the workplace, and training. Ethnic minorities faced difficulty in hiring and attaining promotion, as well as discrimination in the workplace.

The law requires equal pay for equal work. Businesses with more than 250 employees are required to measure, and then report, on how they pay men and women. This affected 8,000 businesses employing approximately 11 million persons. The pay gap has narrowed over the long term for low earners but has remained largely consistent over time for high earners. The Equality and Human Rights Commission is charged with enforcing pay gap reporting requirements. In 2019 the finance sector had the highest pay gap of all sectors, with the average woman earning 35.6 percent less than the average man.

In Northern Ireland the law prohibits discrimination in employment or occupation regarding age, disability, gender or gender reassignment, marital or civil partnership status, pregnancy and maternity, race, sex, sexual orientation, religion, or political affiliation. Teachers applying to work in religious schools, however, are not protected from discrimination on religious grounds. Employers must register with the Northern Ireland Equality Commission if they employ more than 10 persons. Registered employers are required to submit annual reports to the commission on the religious composition of their workforce.

In Scotland the law prohibits discrimination on the basis of age, disability, gender reassignment, marriage and civil partnership, pregnancy and maternity, race, religion or belief, sex, and sexual orientation. The Scottish government introduced a plan in 2019 to address the gender pay gap, estimated at 5.7 percent in 2018. The plan set a goal of reducing the gender pay gap by 2021 and included 50 actions to provide resources and support for working women and mothers.

e. Acceptable Conditions of Work

Wage and Hour Laws: The law provides for a National Living Wage for workers

age 23 or older and a National Minimum Wage for workers of at least school leaving age until age 22. Both wages were above the poverty level.

The law limits the workweek to an average of 48 hours, normally averaged over a 17-week period. The law does not prohibit compulsory overtime, but it limits overtime to the 48-hour workweek restriction. The 48-hour-workweek regulations do not apply to senior managers and others who can exercise control over their own hours of work. There are also exceptions for the armed forces, emergency services, police, domestic workers, sea and air transportation workers, and fishermen. The law allows workers to opt out of the 48-hour limit, although there are exceptions for airline staff, delivery drivers, security guards, and workers on ships or boats.

The government effectively enforced the wage and hour laws. Her Majesty's Revenue and Customs (HMRC) enforces wage payments. The Health and Safety Executive (HSE) enforces maximum working hours. The number of labor inspectors was sufficient to enforce compliance. The HMRC and the HSE can make unannounced inspections and initiate criminal proceedings.

Penalties were generally commensurate with those for similar violations and inspections were sufficient to enforce compliance. Although criminal enforcement is available, most minimum wage noncompliance is pursued via civil enforcement through the courts. In August the HMRC named and shamed 191 companies that had failed to pay 2.1 million pounds (\$2.8 million) to over 34,000 workers. The companies had to pay back wages owed and fines to the government. The HSE reported violations of wage, hour, or overtime laws were common in the agriculture, chemicals, construction, fairgrounds and theme parks, film and theater, logistics and transport, manufacturing, mining, energy, sports and leisure, utilities, and waste and recycling sectors.

Occupational Safety and Health: The government set appropriate and current occupational safety and health standards. The law stipulates employers may not place the health and safety of employees at risk. The HSE is responsible for identifying unsafe situations, and not the worker, and inspectors had the authority to conduct unannounced inspections, levy fines, and initiate criminal proceedings. By law workers can remove themselves from situations that endanger health or

safety without jeopardy to their employment, and authorities effectively protected employees in this situation.

In response to the COVID-19 pandemic, beginning in March 2020 the government advised citizens to work from home if possible. Employers of “essential workers,” such as hospital staff, grocery store workers, and public works departments, were required to make arrangements to work safely. In July 2020 the government allowed anyone unable to work from home to return to their place of work, as long as their employer had put in place sufficient safety measures. The government issued “COVID-secure” workplace guidance for different sectors of the economy. Employers that fail to meet these standards can be reported to the local authority or the HSE, an arm of the Department for Work and Pensions, which can require employers to take additional steps where appropriate. Certain businesses, such as theaters and live music venues, have been ordered to close to reduce the spread of coronavirus COVID-19, contributing to a steep rise in unemployment.

The HSE effectively enforced occupational health and safety laws in all sectors including the informal economy. The fines for violations were commensurate with those for similar laws. HSE inspectors also advise employers on how to comply with the law. Employers may be ordered to make improvements, either through an improvement notice, which allows time for the recipient to comply, or a prohibition notice, which prohibits an activity until remedial action has been taken. The HSE issued notices to companies and individuals for breaches of health and safety law. The notice may involve one or more instances when the recipient failed to comply with health and safety law, each of which was called a “breach.” The HSE prosecuted recipients for noncompliance with a notice while the Crown Office and Procurator Fiscal Service (COPFS) prosecuted similar cases in Scotland. The International Labor Organization expressed concern that the number of HSE inspectors decreased in recent years, noting that the number of cases brought by the HSE had also declined.

From April 10 to August 14, there were 34,835 disease notifications of COVID-19 in workers where occupational exposure was suspected, including 409 death notifications.

Figures for April 2020 to March 2021 revealed 142 persons were fatally injured at

work. An estimated 693,000 workers sustained a nonfatal injury at work according to self-reports in 2019-20. A total of 65,427 industrial injuries were reported in 2019-20 in the UK. The HSE and COPFS prosecuted 342 cases with at least one conviction secured in 325 of these cases, a conviction rate of 95 percent. Across all enforcing bodies, 7,075 notices were issued. The HSE and COPFS prosecutions led to fines totaling 35.8 million pounds (\$47.3 million) compared with the 55.3 million pounds (\$73 million) in 2018-19.

Bermuda's legislation does not provide a minimum or living wage, and efforts to introduce one have not progressed. The Bermuda Department of Labour and Training enforces any contractually agreed wage, hours and safety and health standards. Regulations enforced by the department extensively cover the safety of the work environment, occupational safety, and health standards and are current and appropriate for the main industries. By law workers can remove themselves from situations that endangered health or safety without jeopardy to their employment. Penalties were commensurate with those for similar violations.